



CHAPTER liii.

An Act to amend certain provisions relating to the sale of gas by the South Staffordshire Mond Gas Company and for other purposes.

A.D. 1930.

[15th April 1930.]

WHEREAS by the South Staffordshire Mond Gas (Power and Heating) Company's Act 1901 the South Staffordshire Mond Gas Company (hereinafter called "the Company") were incorporated by the name of the South Staffordshire Mond Gas (Power and Heating) Company and were empowered to manufacture supply sell and distribute within an area in the counties of Stafford and Worcester the producer gas commonly known as Mond gas and any development of Mond gas approved by the Board of Trade and any other producer gas so approved for the purposes of motive or other power heating or any other purpose to which such gases could be applied but the said Act provided that such gases should not be supplied or used for the purposes of illumination and that the Company should not supply gas for use in private dwelling-houses :

And whereas by subsequent Acts the name of the Company was changed to their present name and further powers were conferred upon them :

And whereas by the said Act of 1901 it was provided that the gas supplied by the Company should have a minimum heat value of one hundred and twenty-five British thermal units per cubic foot :

[Ch. liii.] *South Staffordshire Mond Gas* [20 GEO. 5.]
Act, 1930.

A.D. 1930.

And whereas by the South Staffordshire Mond Gas (Power and Heating) Company's Act 1917 the provisions relating to the charges to be made by the Company for the supply of gas were amended and under such provisions as so amended the Company may not in any event charge a price exceeding six and a half pence per thousand cubic feet except so far as they may be permitted so to do by an Order made by the Board of Trade :

And whereas by an Order made by the Board of Trade under the provisions of the said Act of 1917 dated the fourteenth day of August one thousand nine hundred and twenty the maximum price was increased by sixpence per thousand cubic feet :

And whereas by the Gas Regulation Act 1920 the Board of Trade were empowered by Order on the application of gas undertakers to provide for the repeal of provisions requiring the undertakers to supply gas of a particular illuminating or calorific value and to substitute a power to charge for thermal units supplied in the form of gas and to modify the provisions affecting the charges to be made by the undertakers by substituting for any standard or maximum price which any such undertakers were authorised to charge a standard or maximum price for each one hundred thousand British thermal units (in the said Act referred to as "a therm") and which price is to correspond as nearly as may be to that fixed by those provisions for each thousand cubic feet but with such addition as appears to the Board of Trade reasonably required in order to meet increases (if any) due to circumstances beyond the control of or which could not reasonably have been avoided by the undertakers which have occurred since the thirtieth day of June one thousand nine hundred and fourteen in the costs and charges of and incidental to production and supply of gas by the undertakers :

And whereas by the said Act power was given to the Board of Trade in any case in which within two years from the passing of the Act any undertakers did not apply to the Board of Trade for such an Order as aforesaid to make an Order applying to the undertaking of those undertakers which is to have the same effect as an Order made on their application :

And whereas by section 6 of the Gas Undertakings Act 1929 it is provided that where any undertakers who are not authorised by any enactment or by any Order under section 1 of the Gas Regulation Act 1920 (in the now reciting section called "the principal Act") to charge for gas according to the number of British thermal units supplied have in any year subsequent to the year nineteen hundred and twenty-seven supplied more than twenty million cubic feet of gas they shall in respect of the gas supplied by them on or after the appointed day (which in the case of the Company is under the provisions of the said section the first day of April nineteen hundred and thirty) charge according to the number of British thermal units supplied : A.D. 1930.
—

And whereas the said section makes further provision for calculating the price per therm to be charged by the said undertakers and empowers the Board of Trade to make Orders for the purpose of giving effect to the said section and applies certain provisions of the said Act of 1920 to undertakers to whom the said section applies :

And whereas the statutory conditions regulating the supply of gas by the Company differ materially from the statutory conditions regulating undertakers supplying gas for use in (amongst other places) private dwelling-houses and for the purpose (amongst others) of illumination and the Company is believed to be the only Company supplying gas under statutory powers solely for industrial purposes :

And whereas the regulations which under the before-mentioned provisions of the said Acts of 1920 and 1929 are to apply are inappropriate to the business carried on by the Company and apply in general to gas companies carrying on gas undertakings under statutory powers :

And whereas it is accordingly expedient to exempt the Company and their undertaking from such provisions as aforesaid :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

[Ch. liii.] *South Staffordshire Mond Gas* [20 GEO. 5.]
Act, 1930.

A.D. 1930. — Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the South Staffordshire Mond Gas Act 1930 and the South Staffordshire Mond Gas Acts 1901 to 1927 and this Act may be cited together as the South Staffordshire Mond Gas Acts 1901 to 1930.

Interpreta-
tion.

2. In this Act unless there be something in the subject or context repugnant to such construction—

“the Company” means the South Staffordshire Mond Gas Company;

“the Act of 1920” means the Gas Regulation Act 1920;

“the Act of 1929” means the Gas Undertakings Act 1929.

Exemption
of Company
from certain
Acts.

3. It is hereby declared that the Act of 1920 and the Act of 1929 shall not apply and shall be deemed never to have applied to the Company.

Costs of
Act.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may be paid in whole or in part out of revenue.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., O.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses :
Adastral House, Kingsway, London, W.C.2; 120, George Street, Edinburgh;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
15, Donegall Square West, Belfast;
or through any Bookseller.